

THE UNIVERSAL HOUSE OF JUSTICE

1992-09-10

1 dear b ahá'í f riends,

further to our communication dated 7 September 1992 concerning the

2 two condemned bahá'í prisoners in iran, messrs. bihnám mítháqí and kay-

3 ván khalajábádí, the bahá'ís in iran have reported that the relatives of these

4 two prisoners have submitted their complaints against the death sentences in writing
to the iranian Supreme court, the public prosecutor's office and

5 to the o ffice of g eneral i nvestigation. . . .

6 The following details which have been provided by the believers in iran

7 may be shared only with your government contacts at present:

8 personal information about the prisoners:

mr. bihnám mítháqí was born in 1962, is married and has a six-

9 year-old daughter.

10 mr. kayván khalajábádí was born in 1960 and is single.

11 Arrest and Sentencing:

both men were arrested by the islamic revolutionary committee

of rajá'í on 29 April 1989 in goharda sht and were held at gohar-

12 dasht prison for a period of time. later they were transferred to evin

13 prison.

Their first trial took place at branch Number 1 of the office of the

islamic revolutionary court in karaj and, according to court order

Number 1/209/78 dated 19 june 1989, they were sentenced to eight

14 years' correctional imprisonment on the charge of "Spying activities of the espionage
Sect of bahá'ísm." The sentences were effective as

of 19 june 1989. both prisoners appealed their sentences under file

15 Number 13815/68 v -1.

following the appeal of the above sentences, a second verdict

was issued on 12 may 1990 at branch Number 4 of the islamic
revolutionary court of Tehran, at evin, in which they are accused
of "Administrative activities within the bahá'ísm group." both were

16 sentenced to three years' imprisonment effective as of 12 may 1990, 137 .1

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137 .2a

137 .2b

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137 .2d

137 .2e

138 m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

139 288plus 50 lashes. both prisoners protested against this sentence as well

140 and appealed it.

A third sentence was issued on 30 April 1991 by branch Number

3 of the revolutionary court which stated the following: "o n the

4 charges of involvement in administrative activities of zionist bahá'ísm

5 and continued spying activities for the espionage Sect of bahá'ísm,

and spying for the zionist regime of iraq, and for the usurping re-

gime of israel, the accused are sentenced to death." both prisoners

6 again protested against and appealed their sentences.

on 29 october 1991, the iranian authorities orally informed

7 messrs. mítháqí and khalajábádí of their right to hire a lawyer. After

necessary investigations, two muslim lawyers were requested to take

on their cases. one of them visited the office of the revolutionary

8 court in order to file, as is customary, in the presence of the accused,

9 a letter of appointment to act as their lawyer, but he was threatened by the officials of
that office who warned him about the consequences of

his involvement in these cases. hence, on returning from that office

10 he refused to accept the position. The second lawyer, being aware of the situation,
refused to even visit the office of the revolutionary

11 court to file the appointment letter. All of this took place prior to mr.
12 galindo pohl's arrival in iran.

on 24 August 1992, another sentence was issued by branch Number 2 of the revolutionary court in Tehran, which was conveyed to the prisoners by branch Number 6, department of law enforcement of the revolutionary court of Tehran, under reference Number 2149/j-

13 A. The text of this sentence states the following: "on the charges of
14 membership in the administration of zionist bahá'ism and continued
activities for the realization of its goals and also for spying for the
regime occupying jerusalem, in accordance with the verse number 38

of the Súrih of má'idih of the holy qur'án, and Article Number 198

15 of the islamic penal code, they are sentenced to death." (file Number

16 15733/68/b/2/1) After orally conveying the sentence to the prisoners, the authorities informed them that they should prepare themselves for

17 their execution. both prisoners again protested against this verdict.

18 manner of trials held and informing the prisoners of the verdicts, and the

filing of their appeals:137 .2f

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138 1992–1993 • The Holy Year

139 289during the trials only the presiding judge, a court secretary and

140 the accused were allowed to be present. These court cases and verdicts

141 have not been publicized in the media at all.

when the prisoners protested against their sentences orally and

demanded to have something in writing, the law enforcement officer

copied by hand on a letterhead of the prosecutor of the islamic

revolution what appeared to be the text of the original verdict, but

without any signature. he then instructed the prisoners to sign that

copy which would be used by him as evidence that the court sentence

was communicated to them. At the same time, he informed the pris-

142 oners that in case they wished to appeal their sentences, they could do
143 so on the same piece of paper. This the prisoners have done. however,
144 the original verdict, which was in the possession of the officer, was not
145 shown to the prisoners at all.

At no time in the above-mentioned stages of sentencing did the

accused receive any official verdict themselves. in one case only an

146 unsigned copy was provided to them.

The friends in iran commented that the above-mentioned method of re-

147 peated appeals is quite unusual as normally after a second appeal, the court
148 sentences are carried out without any possibility of further appeal and that
149 the cases of these two prisoners are, therefore, quite unprecedented.
150 with loving b ahá'í greetings,

Department of tHe secretariat

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Formulating Goals for the Three Year Plan

[signed: The Universal House of Justice]